

Statement of Damages were served by substitute service. The motion here is based upon Code of Civil Procedure section 473(d) and requires showing that there is a problem with the documents in the judgment roll. Lack of actual notice is often a consideration under Code of Civil Procedure section 473.5, however, this motion was not brought under that section.

In the moving papers it appears that Defendant might have been arguing that Plaintiff was required to personally serve the statement of damages. In reply, however, Defendant acknowledges that the real issue here is whether Defendants were properly served with the FAC and statement of damages. When a party has not appeared in the case, the statement of damages must be served in the same manner as the summons. (Code of Civil Procedure § 425.11(d)(1).) Thus, substitute service, if done properly, can be used to serve a statement of damages.

Public Policy and Prejudice

Defendants argue that public policy supports granting this motion. While public policy often favors a trial on the merits, the Court requires a valid legal ground for finding the default void.

Defendants also argue that Plaintiff will not be prejudiced, but the majority of cases cited by Defendants involved Code of Civil Procedure section 473(b), which involves a different analysis. In *Grappo v. McMills* (2017) 11 Cal. App. 5th 996, the court found there was a void judgment. Further, the discussion on section 473 and prejudice was quoted from another case discussing 473(b). (*Id.* at 1005.)

Judicial Notice

The Court grants Defendants' requests for judicial notice. Exhibits A, B and D are documents filed in this case and exhibit C is from the California Secretary of State.

The Court grants Plaintiff's request for judicial notice as to exhibit 1, 7 and 8. Exhibits 1 and 8 are records of the state and exhibit 7 is a state regulation. The Court grants the request for judicial notice as to exhibits 2 through 6, however, the Court cannot take judicial notice of all facts stated within the narrative portion of the report. However, the Court can take judicial notice that Portillo is listed as the administrator for Linda's Residential Care located at 5145 Turnbull Court.

While these reports may be appropriate for judicial notice in some respects, Plaintiff is attempting to have the court take the truth of facts stated within the report which goes beyond the boundaries of judicial notice.

2. 9:00 AM CASE NUMBER: C22-02054
CASE NAME: CHRISTOPHER WRIGHT VS. SWINERTON BUILDERS
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

This hearing date has been **DROPPED** from calendar. See Notice filed September 15, 2026.

3. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: TO 3RD AMENDED PETITION
FILED BY: STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by Michelle Baass, in her official capacity as Director of the California Department of Health Care Services, and the California Health and Human Services Agency.

This hearing is CONTINUED to October 12, 2026 at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) states:

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. *If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.*

(Code Civ. Proc., § 430.41 (a), emphasis added.)

Moving defendants have failed to show they complied with the above with respect to the Third Amended Complaint, the subject of the present demurrer. It appears such efforts were made in the past, resulting in a stipulation filed on November 19, 2025 to allow the filing of the present complaint, but the effort was not repeated following the amended pleading. This does not meet the statutory requirements.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutory requirement. Defendants shall meet and confer with petitioner, as required, and file a declaration regarding compliance by October 5th. If the parties reach an agreement about any of the matters raised in the motion, or agree to stipulate to an amended petition, the declaration shall include a description of these matters.

4. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: 3RD AMENDED PETITION
FILED BY: MAXIMUS, INC.
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by the "real party in interest," Maximus, Inc. (erroneously sued as Maximus Federal Services). Maximus cites Code of Civil Procedure, § 430.10, subdivisions (a) and (d)-(f). The demurrer is **SUSTAINED without leave to amend** because while petitioner is not necessarily precluded from seeking another form of relief, she cannot state facts constituting a cause of action for administrative mandate against Maximus, as discussed below.

Maximus's demurrer points out that the only cause of action petitioner is seeking is a writ of